

SENATE BILL 863

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 11,
Chapter 14, Part 1 and Title 70, relative to
Reelfoot Lake guide licenses.

WHEREAS, in the winter of 1811 a violent series of earthquakes near the northwest corner of Tennessee caused the land along the mighty Mississippi River to sink, creating a water-filled basin that would come to be known as Reelfoot Lake; and

WHEREAS, Reelfoot Lake, located in both Lake and Obion Counties, is Tennessee's largest natural lake spanning approximately 15,000 acres; and

WHEREAS, the lake's unique landscape of shallow marshes and bayous encompassed by the majestic cypress forest is unlike any other waterbody in the state; and

WHEREAS, Reelfoot Lake historically supported the region's growth by providing a reliable source of irrigation to the agriculture industry; and

WHEREAS, it is home to rare and diverse aquatic and wildlife species, and

WHEREAS, in 1966, Reelfoot Lake was designated a National Natural Landmark by the U.S. Department of Interior and the National Park Service; and

WHEREAS, in 1956, certain areas of the lake were designated as a state park; and

WHEREAS, in 1973, Reelfoot Lake was designated as a state natural area; and

WHEREAS, the lake celebrates a long history of hunting and fishing, supporting habitat for rare and diverse aquatic and wildlife species, and is a celebrated breeding and habitat area for the great American bald eagle and over 200 other migratory birds; and

WHEREAS, Reelfoot Lake is part of the 24,000 acre Reelfoot Wildlife Management Area, attracting over 750,000 people a year to enjoy what is considered top-ranking waterfowl hunting in the Mississippi Flyway; and

WHEREAS, Reelfoot Lake is a bona fide sportsman's paradise of national renown with a long history, heritage, and local economy centered on sportsman activity, including the business of guide services; and

WHEREAS, the General Assembly has designated the Tennessee Wildlife Resources Agency and the Tennessee Fish and Wildlife Commission as the regulating authority for hunting, fishing, and guiding activity in this State; and

WHEREAS, due to the unique landscape and hazards of Reelfoot Lake, a level of expertise and familiarity with the lake and its uniqueness is required for safe navigation and enjoyment; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 70-1-101, is amended by inserting the following as a new subdivision:

() "Guide" means a person who accepts compensation for assisting persons who hunt, fish, or trap, and who is required to possess a guide license issued pursuant to § 70-2-227;

SECTION 2. Tennessee Code Annotated, Title 70, Chapter 2, Part 2, is amended by adding the following as a new section:

70-2-227.

The commission shall:

(1) Create and issue waterfowl guide licenses for persons who work as waterfowl guides at Reelfoot Lake, located in Lake and Obion Counties; and

(2) Promulgate rules to effectuate this section, including rules to require Reelfoot-specific waterfowl guides to demonstrate relevant knowledge of Reelfoot Lake and its inherent hazards. Such rules must be in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. This act takes effect upon becoming law, the public welfare requiring it.